

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE OF ADVERSE AUTHORITY
(JKC3H8 v. COLTON; CCP § 425.16(f);
BARAL; PARK; KIMMEL; FLATLEY;
CRPC 3.3(a)(2))**

MFL-SAC hearing:

Date: April 30, 2026

Time: as set by the Court.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1. AUTHORITY OMITTED FROM THE OPPOSITION’S TABLE OF AUTHORITIES

Defendants’ April 23, 2026 Opposition does not cite JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 471–472, 477–478, in the body or in its Table of Authorities. JKC3H8 is a published California Court of Appeal opinion squarely addressing the leave-to-amend / § 425.16 intersection and is directly adverse to the Opposition’s “no such authority exists” framing.

2. THE NARROW PROPOSITIONS PLAINTIFF DRAWS FROM *JKC3H8*

The Court of Appeal held that where a plaintiff files an amended complaint removing protected-conduct allegations as a basis for liability, a later-filed anti-SLAPP motion directed at the original complaint may be rendered moot (JKC3H8, 221 Cal.App.4th at pp. 471–472). The opinion expressly limits amendments offered **in response to the motion** to subvert or avoid a ruling on an anti-SLAPP motion (*id.* at pp. 477–478). California’s sequencing answer includes CCP § 425.16(f) (renewed motion) read with noticed leave under §§ 473(a)(1) and 576.

3. PLAINTIFF ACCEPTS THE ANTI-SUBVERSION BASELINE

Plaintiff accepts Simmons / Colton / Ellis / Contreras and is not seeking amendment as of right. Plaintiff proceeds by noticed §§ 473(a)(1) / 576 leave to perfect - not to subvert.

4. ADDITIONAL OMITTED ANTI-SLAPP AUTHORITIES

The Opposition omits several additional authorities that are directly adverse to the positions taken:

(A) CCP § 425.16(F) - THE STATUTORY SEQUENCING ANSWER

Defendants assert that plaintiff’s motion for leave is “barred as a matter of law” and that it is “abundantly clear . . . [plaintiff’s claims] cannot be amended.” (802-Opposition, p. 5, 7.) Code of Civil Procedure section 425.16(f) provides that “[t]he special motion may be filed within 60 days of the service of the amended complaint”: the statute expressly **preserves** the renewed-motion right after any superseding pleading. The Opposition’s categorical framing fails to acknowledge the statutory sequencing answer.

1 **(B) *BARAL V. SCHNITT* (2016) 1 CAL.5TH 376, 393–396**

2 The Opposition asserts that “the entirety of the purported legal theories . . . focus inextricably on . . .
3 protected litigation conduct.” (802-Opposition, p. 5.) Baral requires surgical targeting of **specific**
4 **allegations** arising from protected activity - not wholesale labeling of “the entirety” of a pleading.
5 The Court held that “allegations of protected activity that are merely incidental to an unprotected
6 claim” do not trigger anti-SLAPP analysis. Baral, supra, 1 Cal.5th at p. 394.

7 **(C) *PARK V. BOARD OF TRUSTEES* (2017) 2 CAL.5TH 1057, 1062–1063**

8 The Opposition asserts that “Plaintiff’s allegations squarely target Defendant’s litigation conduct.”
9 (802-Opposition, p. 4.) Park holds that step-one is a **gravamen** analysis: the court asks “what
10 the defendant’s activity is that gives rise to his or her asserted liability - and whether that activity
11 constitutes protected speech or petitioning.” Park, supra, 2 Cal.5th at p. 1063. Protected activity
12 cited as **evidence** of an unprotected claim does not move the case to step two.

13 **(D) *KIMMEL V. GOLAND* (1990) 51 CAL.3D 202, 211–212**

14 The Opposition’s gravamen framing ignores that Kimmel holds non-communicative **pre-litigation**
15 **conduct** may fall outside the anti-SLAPP statute even when connected to later litigation. Where
16 plaintiff’s primary theory is breach of the implied covenant arising from claims-handling **before**
17 any litigation privilege attached, the gravamen is not protected petitioning.

18 **(E) *FLATLEY V. MAURO* (2006) 39 CAL.4TH 299**

19 The Opposition does not address the Flatley illegality exception. Where protected activity is **illegal**
20 **as a matter of law**, the anti-SLAPP statute does not apply at step one. Flatley, supra, 39 Cal.4th
21 at p. 320.

22 **5. SUPPORTING AUTHORITY**

23 Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873 is also identified as supporting author-
24 ity on limited discretion to perfect a pleading after a merits showing.

25 **6. RESPECTFUL REQUEST**

26 Plaintiff respectfully requests that the Court take notice of these authorities and invite counsel to
27 address them at the noticed hearing. This Notice is not a motion for sanctions and does not restart

1 any safe-harbor period.

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3 **PROOF OF SERVICE**

4 [Attach CCP § 1013a-compliant proof of service naming each electronic and mail recipient for this
5 filing.]

6 Dated: April 27, 2026

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8 Franciscus Dylan Rosario, Plaintiff in Pro Per